

25PSCV04607 25PSCV04607

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Case Number: 25PSCV04607 Hearing Date: August 13, 2026 Dept: H

Rodriguez v.

Quality Transport LLC, et al.,

Case No. 25PSCV04607

ORDER ON DEMURRER

Defendant

Howmet Aerospace, Inc.'s Demurrer is SUSTAINED with 20 days' leave to amend.

Background

Plaintiff

Anita Rodriguez ("Plaintiff") alleges as follows:

On February 6, 2024, Plaintiff sustained personal injuries after Defendant Kodirjon Musurmonov ("Musurmonov") made an unsafe lane change in front of Plaintiff's vehicle, causing a sideswipe collision. The investigating officer found that the primary crash factor was Musurmonov's unsafe lane change in violation of California Vehicle Code section 21658, subdivision (a). The incident occurred on Interstate 210 West in Los Angeles, in or near the area west of Irwindale Avenue.

On

December 19, 2025, Plaintiff filed a negligence/negligence per se complaint against Defendants Quality Transport LLC, Musurmonov, and Does 1 through 50, inclusive.

On

April 15, 2026, Plaintiff amended the complaint and named Defendant CRST Expedited Inc., as Doe 1, Defendant CRST Logistics, Inc. as Does 2, Defendant Beneke Wire Company as Doe 3, and Howmet Aerospace, Inc. ("Howmet") as Doe 4.

On

July 17, 2026, Defendant CRST Logistics, Inc. was dismissed.

The

Final Status Conference is scheduled for February 5, 2027. The Non-Jury Trial is scheduled for February 17, 2027.

Legal

Standard

The grounds for a

demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30,

subd. (a); Blank v. Kirwan (1985) 39 Cal.3d 311,

318.) Concerning the legal

sufficiency of a pleading, the sole issue on demurrer is whether the facts

pleaded, if true, state a valid cause of action – i.e., if the complaint

pleaded facts that would entitle the plaintiff to relief. (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 339.)

A general demurrer admits

the truth of all factual, material allegations properly pled in the challenged

pleading, regardless of possible difficulties of proof. (Blank, supra, 39 Cal.3d at p. 318.) Thus, no matter how unlikely or improbable,

plaintiff's allegations must be accepted as true for the purpose of ruling on

the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d

593, 604.) Nevertheless, this rule

does not apply to allegations expressing mere conclusions of law, or allegations

contradicted by the exhibits to the complaint or by matters of which judicial

notice may be taken. (Vance v. Villa Park Mobilehome Estates (1995) 36 Cal.App.4th 698,

709.) A general demurrer does not

admit contentions, deductions, or conclusions of fact or law alleged in the

complaint; facts impossible in law; or allegations contrary to facts of which a

court may take judicial notice. (Blank, supra, 39 Cal.3d at p. 318.)

Pursuant to Code of Civil Procedure section

430.10, subdivisions (e)-(f), the party against whom a complaint has been

filed may object by demurrer to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action and/or the pleading is uncertain, ambiguous, and unintelligible. It is an abuse of discretion to sustain a demurrer if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1082, as modified (Dec. 23, 2003).)

When a demurrer is

sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank*, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.)

Discussion

Howmet

demurs, per Code of Civil Procedure section 430.10, subdivisions (e)-(f), to Plaintiff's complaint, on the basis that it fails to state facts sufficient to constitute a cause of action. [FN]

"The elements of any negligence cause of action are duty, breach of duty, proximate cause, and damages." (*Peredia v. HR Mobile Services, Inc.* (2018) 25 Cal.App.5th 680, 687.) "[W]hether a individual owes a duty of care to another is a question of law." (*Portillo v. Aiassa* (1994) 27 Cal.App.4th 1128, 1133.)

"The negligence per se doctrine, as codified in Evidence Code section 669, creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence of the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted." (*Spates v. Dameron Hospital Association* (2003) 114 Cal.App.4th 208, 218, cleaned up.) "The doctrine of negligence per se is not a separate cause of action[] but creates an evidentiary presumption that

affects the standard of care in a cause of action for negligence.” (Johnson v. Honeywell International Inc. (2009) 179 Cal.App.4th 549, 555, cleaned up.)

Howmet asserts that Plaintiff’s negligence cause of action fails because under California law, a duty of selection of an independent contractor does not exist and because the cause of action is uncertain to the extent Plaintiff seeks to allege Howmet is “otherwise legally responsible in some manner for the events and happenings.”

Plaintiff has alleged that on February 6, 2024, while she was driving her vehicle on I-210 West in or near the area west of Irwindale Avenue, Musurmonov made an unsafe lane change in front of Plaintiff’s vehicle. (Compl., ¶¶ 8-11.) As a result, Plaintiff’s vehicle was struck on the left side and led to a sideswipe collision. (Compl., ¶ 12.) Musurmonov’s unsafe lane change was determined to be the primary crash factor by the investigating officer in violation of California Vehicle Code section 21658, subdivision (a). (Compl., ¶ 13.) As a result of the accident, Plaintiff alleges that she sustained bodily injuries and emotional distress. (Compl., ¶ 15.)

As to the negligence cause of action, Plaintiff alleges that Defendants owed her “a duty to use reasonable care in the ownership, maintenance, dispatch, entrustment, and operation of a commercial motor vehicle on California public roadways, including the duty to keep a proper lookout, maintain lane position, signal and execute lane changes only when safe, and avoid collisions.” (Compl., ¶ 17.) Defendants breached this duty when Musurmonov made the alleged unsafe lane change resulting in the collision. (Compl., ¶ 18.) Plaintiff further alleges that Defendants violated California Vehicle Code sections 21658, 22107, and 22350 and that she was within the class of persons the statutes were designed to protect. (Compl., ¶¶ 20-25.)

Plaintiff’s counsel Eli S. Cohen states in his declaration in support of Plaintiff’s amendments to the complaint that Howmet “is liable to Plaintiff on theories, including, but not limited to, negligent selection of the motor carrier and/or freight broker, and any other basis of liability to be established through discovery.” (Cohen Amendment Decl., ¶ 19.) Plaintiff argues that Howmet’s reliance on this filing is improper because a demurrer can only challenge defects that appear on a pleading’s face. (Opp., at p. 7.) Pursuant to Code of Civil Procedure section 430.30, subdivision (a), “[w]hen any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may

take judicial notice, the objection on that ground may be taken by a demurrer to the pleading.”

Here, the Court is not required to take judicial notice of the declaration, per Evidence Code section 451, and Howmet did not request that the Court take judicial notice of the filing. As such, the Court declines to consider the declaration because it is extrinsic evidence that is not judicially noticed. (See *Evans v. Pillsbury, Madison & Sutro* (1998) 65 Cal.App.4th 599, 605, n. 5 [“Courts reviewing rulings on general demurrers can consider ‘facts that may properly be judicially noticed.’ (Italics added.) (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

Even so, the Court agrees with Howmet that the complaint fails to allege sufficient facts to maintain a negligence claim. The complaint is devoid of facts that establish any of the elements of a negligence cause of action. Plaintiff merely states conclusory allegations that are not sufficient to carry the day. In addition, Plaintiff lumps all the Defendants together, making it uncertain what the Defendants’ duties are, the theories of liability establishing said duties, and how Defendants breached said duties. Based on the complaint, the Court is unable to determine Howmet’s involvement.

Accordingly,
Howmet’s demurrer is sustained with 20 days’ leave to amend.

[FN] Howmet’s counsel, Timothy M.

Baumann, states in his declaration that he met and conferred with Plaintiff’s counsel on June 22, 2026 regarding this demurrer. (Baumann, ¶ 6.) He followed up with an email summarizing the substance of their phone call and outlining the grounds under which Howmet intended to demur. (Id.) On June 25, 2026, Plaintiff’s counsel confirmed that she intended to proceed with her complaint against Howmet. (Id., ¶ 7.) The Court finds the parties meet and confer efforts to be sufficient and turns to the demurrer’s merits.